

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

EHSAN HAMIDI,

Petitioner

VS.

ALLISON PAZ,

Respondent

) Case Number: FDI-25-801833

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: CONSOLIDATE WITH FDV CASE; REQUEST FOR ORDER
TEMPORARY EMERGENCY ORDER, PROPERTY CONTROL, CONSOLIDATE WITH FDV CASE,
BUYOUT FAMILY RESIDENCE, OR OST

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Ehsan Hamidi (Father) and Respondent Allison Paz (Mother) married on 5/12/2023
and separated on 7/20/2025, for a marriage of 2 years and 2 months. The parties have one minor
child, Esther (DOB: 8/16/2023, age 2). Mother is represented by attorneys Stacey Poole and
Nancy Nugent.
- 2) On 7/23/2025 in related Case No. FDV-25-818545, Mother filed a Request for Domestic
Violence Restraining Order (DVRO) seeking protection for herself and the parties' daughter
against Father.
- 3) Per the Stipulation and Order filed 12/8/2025 in Case No. FDV-25-818545 which includes the
following orders:
 - a. Neither party shall solicit or initiate in-person contact with the other party.

- b. The parties shall share joint legal and physical custody of Esther based on a 2-2-3 schedule.
 - c. The parties shall select a mutually agreed-upon child custody mediator to assist in developing a comprehensive parenting plan including a long-term parenting schedule.
 - d. Mother shall continue to have exclusive use of the real property located at 3019 Broderick St. San Francisco, CA 94123 (“marital residence”) until 4/1/2026 and the parties will meet and confer regarding the disposition of the marital residence. If the parties have not reached a mutual agreement as to who will buy out the other party’s interest in the marital residence by 4/1/2026, the parties shall proceed with listing the house for sale and shall further meet and confer regarding the terms and process of such sale.
 - e. Father shall continue to pay the carrying costs of the marital residence pending further written agreement of the parties or court order.
 - f. Mother’s Request for a DVRO shall be dismissed without prejudice.
- 4) On for hearing is Mother’s Request for Order filed 4/24/2026 asking the Court to grant her temporary exclusive use, possession, and control of the marital residence pending its sale and to consolidate the FDI case with the related FDV case.
- 5) On 5/12/2026, Mother filed an ex parte Request for Order stating that she presented a buyout offer to Father on 3/31/2026 (after delays caused by her appraiser) for the marital residence which includes reimbursement to Father for his claimed Family Code section 2640 separate property contribution to the property. Mother asks the Court to order:
- a. Mother be allowed to buy out Father of the Broderick Residence for \$680,616 and Mother will agree to a reasonable deadline for her to pay this amount to Father;
 - b. An order shortening time for a hearing if the Court is not inclined to order the buyout at the ex parte hearing and allow Mother to continue to reside in the residence until the hearing; OR
 - c. A judicial settlement conference to obtain judicial assistance to a settlement on this issue.
- 6) On 5/12/2026, Father filed a Responsive Declaration asking the Court to make the following orders:

- a. Deny any request by Mother to force the sale of the property under her proposed terms;
 - b. The parties to proceed with the two listing agents selected by the parties and that the family residence be staged and listed for sale forthwith;
 - c. Order Mother to vacate the property by May 31, 2026 so that the parties can stage the property and list it for sale or order a specific move-out date which the Court feels would be reasonable under the circumstances
 - d. Take Judicial Notice under California Evidence Code Section 452 (Court Records/Verifiable Facts) and Section 453, of Mother's Declaration and acknowledgement made under penalty of perjury in her declaration of Father's FC Section 2640 reimbursement claims in the amount of \$552,237 for Father's separate property portion of the community property residence and order that amount be credited towards Father's equity when the property ultimately sells.
- 7) Per the Temporary Emergency (Ex Parte) Orders filed on 5/12/2026, the Court denied both parties' requests pending a hearing set for 6/30/2026. The Court ordered the parties to file and serve update declarations at least 10 days before the 6/30/2026 hearing informing the Court of any new developments regarding the residence. The Court also consolidated the FDV case into and under the FDI case.
- 8) On 6/22/2026, Mother filed a Supplemental Declaration. Mother states all parties signed a Stipulation stating that if the marital residence is sold, all net proceeds from the sale of the marital residence will remain in a blocked account and inaccessible to either party absent further court order. Mother states that the parties agreed to use two listing agents, one of Father's choosing and one of Mother's choosing Mother also states, "At a Status Conference on June 1, 2026, the Court indicated that it expected both parties to abide by the December 8, 2025 stipulation, and meet and confer regarding the house listing. At the Status Conference, the Court also indicated that it would not make any orders as to the listing, my moving out, or any other issues because the Court had no information from the listing agents as to what work would be necessary to ready the house for sale, what differing opinions the agents may have on listing price or date, or any other relevant information. The Court did order that I make the house available to Ehsan's agent to tour the home." Mother states that, to date, she has not received a request from Father's agent to tour

1 the residence and her agent has not heard from Father's agent to meet and confer regarding listing
2 prices, listing date, work necessary to prepare the home for sale, etc. Mother states that she does
3 not know why Father and his agent have "gone silent." Mother further states, "Given there has
4 been no movement from Ehsan or his realtor, I do not believe there is any further action the Court
5 needs to take at this time related to the May 12, 2026 RFO or sale of the house as there are no
6 disputes on that issue at this time."

7 9) Father did not file an Update Declaration.

8 **B. Findings and Order**

9 1) As Mother indicates there are currently no disputed issues regarding the marital residence, and
10 Father has not filed an Update Declaration, the Court makes no additional orders at this time.

11 2) The relief requested in Mother's Request for Order filed 4/24/2026, her ex parte Request for
12 Order filed 5/12/2026, and Father's Responsive Declaration filed 5/12/2026 is denied without
13 prejudice.

14 3) Mother's attorney shall prepare the Findings and Order After Hearing.

15 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
16 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
17 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
18 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
19 proposed order after hearing directly to the court. Failure to submit the order after hearing within
20 10 days may allow the other party to prepare a proposed order and submit it to the court in
21 accordance with CA Rules of Court, Rule 5.125(d).